

Authorship Decision Tree

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Human, machine or joint authorship?

PROFESSIONAL DEFINITION

The Authorship Decision Tree guides whether an AI-assisted output is human-authored, machine-generated, or jointly created, with different copyright and ownership consequences for each path.

WHO DEVELOPED IT

Associated with the legal scholarship of Jyh-An Lee and colleagues on AI, authorship and intellectual property.

WHY IT WAS DEVELOPED

It was developed because most jurisdictions require a human author for copyright, leaving AI-generated output in a contested space that must be navigated.

FIGURE 1 · AUTHORSHIP DECISION TREE



Figure 1. A schematic of the Authorship Decision Tree as applied in BARBM312 (illustrative).

HOW IT IS USED

The tree asks about the human's creative contribution and control, classifying the output and its likely ownership and protectability.

WHEN IT IS USED

When determining rights in AI-generated content and code.

BY WHOM IT IS USED

Legal, IP and product leaders working with generative AI.

INNOVATION RELATIVE TO THE PREDECESSOR TOOL

It operationalises an unsettled legal question into a usable decision aid, central to value capture in generative AI.

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SOURCES (HARVARD REFERENCING STYLE)

Lee, J.-A., Hilty, R.M. and Liu, K.-C. (eds.) (2021) Artificial Intelligence and Intellectual Property. Oxford: OUP.
US Copyright Office (2023) 'Copyright registration guidance: Works containing material generated by AI'.